

STATE OF NEW YORK

8598--A

2025-2026 Regular Sessions

IN SENATE

December 3, 2025

Introduced by Sen. RAMOS -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring certain anti-aging skin care products to contain a warning label

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 391-y to read as follows:

3 § 391-y. Sale of anti-aging skin care products. 1. For the purposes of
4 this section:

5 a. "Anti-aging skin care product" shall mean any over-the-counter
6 cosmetic or skin care product that contains as an active or inten-
7 tionally added ingredient:

8 (i) vitamin A or any vitamin A derivative, including but not limited
9 to retinoids, retinol, or retinyl esters;

10 (ii) an alpha hydroxy acid, including but not limited to glycolic
11 acid, lactic acid, citric acid or similar compounds used for exfoliation
12 or anti-aging purposes;

13 (iii) salicylic acid;

14 (iv) DMDM hydantoin;

15 (v) quaternium-15;

16 (vi) oxybenzone;

17 (vii) octinoxate; or

18 (viii) talc.

19 b. "Retailer" shall mean any person, firm, association, partnership,
20 limited liability company, or corporation that sells, produces,
21 prepares, formulates, or compounds a personal care product or products,
22 or whose brand name is affixed to such product or products.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. a. No retailer shall sell or offer for sale any anti-aging skin
2 care product in this state unless such product bears a clear and
3 conspicuous warning label. Such warning label shall appear on the prod-
4 uct packaging and, for online sales, on the product display page before
5 purchase.

6 b. The warning label required pursuant to paragraph a of this subdivi-
7 sion shall state: "WARNING: This product contains ingredients that may
8 cause skin irritation, increased sun sensitivity, or other adverse
9 reactions, particularly in individuals under 18 years of age. Consult a
10 healthcare professional before use."

11 c. The warning label shall be printed in a font size and style that is
12 clearly legible and placed in a location reasonably calculated to be
13 seen and understood by consumers under ordinary conditions of purchase
14 and use.

15 3. Any retailer that violates the provisions of this section shall be
16 subject to a civil penalty of up to two hundred fifty dollars for the
17 first violation and up to five hundred dollars for each subsequent
18 violation.

19 § 2. This act shall take effect on the one hundred eightieth day after
20 it shall have become a law. Effective immediately, the addition, amend-
21 ment and/or repeal of any rule or regulation necessary for the implemen-
22 tation of this act on its effective date are authorized to be made and
23 completed on or before such effective date.